

24NWCV01600 24NWCV01600

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Case Number: 24NWCV01600 Hearing Date: July 9, 2026 Dept: P

ELIZABETH NAJERA, ET AL. v. GENERAL MOTORS LLC

CASE NO.: 24NWCV01600

HEARING: 07/09/2026 @

9:30 AM

#12

TENTATIVE ORDER

Defendant General Motors LLC 's motion to tax costs is
GRANTED IN PART and DENIED IN PART. The Court taxes \$569.25.

Moving party to give notice.

Defendant General Motors LLC (Defendant) moves to strike
and/or tax costs from Plaintiffs Elizabeth Najera and Gerome Najera's
(Plaintiffs) memorandum of costs.

Background

On May 22, 2024, Plaintiffs filed this lemon law action
against Defendant and Does 1 through 10, inclusive. The complaint alleges
Plaintiffs purchased a 2019 Chevy Traverse, VIN 1GNERGKW4KJ299468 (Subject
Vehicle) and experienced nonconformities to warranty including check engine
light, water leak, electrical, fluid leak, defective seam, and other defects.
(Complaint, ¶¶ 4-12.) The complaint for restitution and damages alleges

violations under the Song-Beverly Act.

On January 6, 2026, Plaintiffs filed a Notice of Acceptance of Defendant's statutory offer to compromise under Code of Civil Procedure section 998. The Court entered judgment on the same date in favor of Plaintiffs and against Defendant.

Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc., § 1032, subd. (b).) Under Civil Code section 1794, subdivision (d): "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

" 'In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable. [Citation.] Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.'" (Rozanova v. Uribe (2021) 68 Cal.App.5th 392, 400, internal quotations omitted.) "Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. [Citation.] However, because the right to costs is governed strictly by statute [citation] a court has no discretion to award costs not statutorily authorized." (Ibid.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224.)

Allowable costs "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1032, subd. (c)(2).) "Allowable costs shall be reasonable in amount." (Code Civ. Proc., § 1032, subd. (c)(3).)

Discussion

Defendant moves to strike a total of \$861.68 out of the \$4,870.26 in costs claimed by Plaintiffs in their memorandum of costs. Defendant moves on the grounds that the costs are meritless and the consequence of litigation tactics that did not advance Plaintiffs' case.

No. 1: Filing and Motion Fees

Defendant moves to strike \$160.43 in filing fees for the "Motion for Attorney Fees" (\$86.57); "Reply - Motion for Attorney Fees" (\$24.62); "Notice of Ruling - Motion for Attorney's Fees" (\$24.62); and "Request for Dismissal" (\$24.62). Defendant argues that these costs are future costs as these were not filed as of the date Plaintiffs filed their memorandum of costs.

As of the date of this hearing, Plaintiffs filed a Motion for Attorney Fees. Therefore, the Court does not strike these filing fees. However, Plaintiffs confirm that they have not filed, but only anticipate filing, the Reply, Notice of Ruling, and Request for Dismissal. (Hunt Decl., ¶ 5.) As the costs are not actually "incurred" at this time, the Court agrees that these should be taxed.

Therefore, the Court taxes \$73.86 in costs representing the documents that have not yet been filed.

No. 16: Other (Subpoenas)

Defendant additionally moves to strike \$205.86 in costs for "Record Subpoena" to third party dealerships Rotolo Chevrolet Inc. and Chevrolet of Montello. Defendant argues these costs were optional and unnecessary as Plaintiffs should have already been in possession of the requested documents.

Plaintiffs state that the third-party dealerships are "GM-authorized dealerships that serviced the Subject Vehicle." (Hunt Decl., ¶ 6.) As such, the Court finds costs spent on deposition subpoenas for information that is potentially relevant to the Subject Vehicle are "reasonably incurred" in prosecuting this action. (Code Civ. Proc., § 1794, subd. (d).) Therefore, the Court does not tax the deposition subpoena costs.

No. 16:

Other (Postage, Photocopies, Mileage, Late Fees)

Defendant moves to strike \$495.39 in costs for printing, postage, "Mileage - Drive to and from vehicle surrender - Melissa Lopez" (\$60.20), and "Steno - Late Cancellation Fee - Court Reporter" (\$375.00). Defendant argues that serving documents and driving to surrender a vehicle pursuant to the settlement agreement are inherent costs of doing business. Further, Defendant argues that printing and postage costs are not reasonable because the subject documents could have been served electronically. Additionally, Defendant argues it "informed Counsel that the witness would not be available, accordingly, GM should not be responsible for Counsel's failure to timely cancel the stenographer." (Mot., 5:10-12.)

Here, the Court strikes \$60.19 representing "Printing - Discovery requests," "Postage - Discovery requests," "Printing - CCP 2016.090 Demand Letter," "Postage - CCP 2016.090 Demand Letter," "Printing - Discovery responses," and "Postage - Discovery responses - Priority Mail." "Postage...and photocopying charges, except for exhibits" "are not allowable as costs, except when expressly authorized by law." (Code Civ. Proc., § 1033.5, subd. (b)(3).) While Plaintiffs argue that printing and postage costs are allowable under Civil Code section 1794, subdivision (d), Plaintiffs do not show cite to authority showing that they are "expressly authorized by law." (Code Civ. Proc., § 1033.5, subd. (b)(3).)

As to the mileage costs, these costs are neither addressed in the statute nor appear to contribute to the prosecution of this action on their face. Additionally, there is no documentation supporting this cost or showing the distance travelled as to result in this cost. Plaintiffs state that a paralegal in Plaintiffs' counsel's firm had to travel to the dealership to retrieve Defendant's settlement funds because Defendant did not send the funds to Plaintiffs' counsel. (Hunt Decl., ¶ 8.) The Court agrees with Defendant's reply argument that costs to effectuate the exchange of funds following the settlement are not reasonably incurred "in connection with the commencement and prosecution of such action," as Plaintiffs' claims had already been resolved. (Code Civ. Proc., § 1794, subd. (d).) Therefore, the Court taxes \$60.20 in mileage fees.

As to the late fees for cancelling the court reporter, these

costs are not covered under the statute. Defendant argues that these costs are unreasonable because Defendant informed Plaintiffs that it would not produce a witness for the deposition and Plaintiff did not cancel the reporter in time. Plaintiffs state that they incurred the late fee “when GM cancelled the appearance of its PMQ witness at the last minute.” (Hunt Decl., ¶ 7.) However, Plaintiffs do not present any evidence establishing whether Defendant cancelled before or after a late fee would have necessarily been incurred. The Court therefore taxes \$375 in late fees.

Accordingly, Defendant’s motion to tax costs is GRANTED IN PART and DENIED IN PART. The Court taxes \$569.25.